

		Professional Conduct, Rule 1.16. All other requirements are satisfied. Thus, the Motion to Be Relieved as Counsel is GRANTED. The Court will interlineate the proposed order filed with the Court (ROA 84) to delete the trial date of 07/27/2026 and add the status conference on 11/16/2026. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Counsel to give notice.
113	Robicheaux v. Rowshan, 2022-01261647	MOTION FOR SANCTIONS This motion was filed several months ago. Before the Court decides what (if any) sanction is appropriate, it will need to figure out whether and when the discovery complained about in this motion was produced.
114	Vickers v City of Newport Beach, 2026-01565611	HEARING VACATED DUE TO DESIGNATION AS COMPLEX MATTER
115	Davis v. Bachmayer, 2022-01291164	DEFENDANT'S MOTION TO COMPEL DEPOSITION OF PLAINTIFF – DENIED Defendant John T. Bachmayer's ("Defendant") motion to compel the deposition of Plaintiff Jaimie Davis ("Plaintiff") is DENIED. Plaintiff timely served valid objections to the deposition notice on February 27, 2026. (Bachmayer Decl. ¶5, Exh. C.) The primary objection was as to the location specified in the notice, on the grounds that it violated CCP §2025.250(a). That section provides: (a) Unless the court orders otherwise under Section 2025.260, the deposition of a natural person, whether or not a party to the action, shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent's residence, or within the county where the action is

	pending and within 150 miles of the deponent's residence. Plaintiff resides in Las Vegas, Nevada. (Davis Decl. ¶2.) The deposition was noticed to take place in Tustin, California. (Bachmayer Decl. ¶ 3, Exh. A.) The distance from Plaintiff's residence to the deposition site far exceeds 150 miles. Plaintiff's objection to the deposition notice was therefore a valid objection, as Defendant had not obtained a court order authorizing the deposition to be taken outside the 150 mile limit. While Defendant contends that Plaintiff stipulated to the location, the email in support of this purported stipulation is ambiguous at best. Plaintiff only indicated "I have one obligation on the 5th that I think can be changed." (Bachmayer Decl. ¶ 3, Exh. B.) This is not in any way tantamount to a stipulation to appear on March 5th for deposition at the location selected by Defendant. Further, the motion is not timely. The objections were served on February 27, 2026. (Bachmayer Decl. ¶5, Exh. C.) However, the motion was not filed until May 22, 2026. While CCP § 2025.450 does not specify a time limit for filing a motion to compel deposition when the party deponent fails to appear without serving a valid objection, CCP § 2025.480 specifies that a motion to compel deposition must be made "no later than 60 days after the completion of the record of the deposition." (CCP § 2025.480(a)). This provision has been construed to require motions to compel depositions under various provisions of the Discovery Act to be filed within 60 days after service of objections. (See Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 136.) Here, the motion was filed nearly a month after the 60-day deadline had elapsed. Plaintiff's request for monetary sanctions is DENIED. Plaintiff is in pro per and has obtained a fee waiver and has not otherwise demonstrated that Plaintiff incurred any expenses in opposing the motion to compel. (See Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1021 (Kravitz) [discovery monetary sanctions may not
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	include award of attorney fees to self-represented litigant but may include legitimate identified costs such as technology assisted legal research, photocopying, and transportation to court].) PLAINTIFF'S MOTION TO COMPEL FURTHER ANSWERS TO DEPOSITION QUESTIONS AND PRODUCTION OF DOCUMENTS BY DEFENDANT – DENIED Plaintiff moves to compel further deposition answers and production of documents from Defendant. The motion is DENIED. As to Plaintiff's ten requests for production of documents, the separate statement does not comply with CRC 3.1345(c)(2) in that the text of each response, answer or objection has not been provided. Instead, Plaintiff provides a summary of Defendant's response. For example, for the first request for production, the entry under the heading "Response/Objection Given," states: Blanket objections, including privilege and work product; no production. Deposition testimony confirmed he did not produce any documents in response to the notice and instead "interpos[ed] an objection to the notice." It is impossible for the Court to ascertain from this exactly what objections were made. Further, despite referencing them in her declaration, Plaintiff did not provide the Court with a copy of Defendant's responses. Thus, there is no way for the Court to determine what Defendant's responses were, even if the Court were inclined to search through the record (which, per CRC 3.1345(c), it is under no obligation to do). As to the deposition questions, CCP §2025.480 requires the moving party to lodge with the court a certified copy of any parts of the stenographic transcript of the deposition that is relevant to the motion. Plaintiff has not provided the Court with a copy of the deposition transcript. Further, it is unclear whether the text of the "responses" in the separate statement includes the full
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	response or whether Plaintiff has only provided the Court with selected excerpts. For example, excerpt No. 22 indicates it came from pages 58:4-16 of the transcript (a total of 12 lines), but the text of the question provided is only one sentence, and the text of the response is even shorter, and contains ellipses. It thus appears that the entirety of the response has not been provided, and this appears to be the case with most, if not all, of the excerpts. Further, CCP § 2025.480(b) requires a reasonable and good faith attempt to informally resolve each issue presented in the motion. While Plaintiff includes a conclusory statement in her declaration that she met and conferred with Defendant both in person and on the phone prior to filing the motion, Defendant persuasively disputes that characterization. (Davis Decl. ¶ 8; Bachmayer Decl. ¶¶ 5-7.) Plaintiff did not file a reply and therefore has not disputed Defendant's account of the purported meet and confer efforts. Sanctions in the amount of \$19.50 are issued against Plaintiff Jaimie Davis. (CCP §2025.480(j).) The amount represents amounts paid for electronic filing contractors expended by Defendant in opposing this motion. Sanctions are due and payable to Defendant within 30 days of this order. Clerk to give notice. The parties should be prepared to advise the Court regarding the status of their necessary pretrial meet and confer pursuant to Local Rule 317.
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